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CASE #	CASE NAME	HEARING NAME
CVPS2506387	GUERRERO VS HYUNDAI MOTOR AMERICA	MOTION TO COMPEL COMPLIANCE WITH CCP 871.26 BY HYUNDAI MOTOR AMERICA

Tentative Ruling: No tentative ruling. Hearing will be conducted on Thursday August 6, 2026 at 8:30 a.m. in Department PS2.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2506930	DIAMANTIDES-ABEL VS DIAMANTIDES ABEL	MOTION TO STRIKE COMPLAINT ON COMPLAINT OF ARGY DIAMANTIDES-ABEL BY JAYLYN ORTEGA

Tentative Ruling: Denied.

Court to provide notice pursuant to CCP 1019.5.

This is a quiet title action. Plaintiff Argy Diamantides Abel (“Plaintiff”) alleges that since 2014, she has been the sole owner of a residential property in Palm Desert (“Subject Property”). Plaintiff asserts that she temporarily transferred title to the Subject Property to her three sons, including Defendant Zacharias Diamantides Abel (“Zacharias”) to protect it from her siblings who were challenging their mother’s Trust. In 2024, Zacharias and his girlfriend, Defendant Jaylin Ortega (“Ortega”) (collectively with Zacharias “Defendants”) briefly moved into the Subject Property with Plaintiff’s consent. Plaintiff alleges that Defendants caused damage to the carpets and failed to tend to the landscaping, leading to a public nuisance citation. On June 1, 2025, Defendants began living rent-free in the Subject Property without Plaintiff’s knowledge or consent. When Plaintiff learned of the occupancy, she went to the Subject Property, but Defendants had changed the garage and front door codes. Sheriff’s deputies were called and ordered to Plaintiff to leave the premises since Zacharias, rather than Plaintiff, was a titled owner.

On September 22, 2025, Plaintiff filed the Complaint. She asserts three causes of action for: (1) Quiet Title; (2) Financial Elder Abuse; and (3) Rescission of Deed of Trust.

The Proofs of Service, filed on November 21, 2025, indicate that on both Defendants were personally served at the Subject Property on November 2, 2026. On December 10, 2026, default was entered against both Defendants. On January 26, 2026, both Defendants filed motion to set aside the default, which were granted on May 14, 2026. In so granting, the Court ordered Ortega to pay sanctions in the amount of \$1,000.00 and Zacharias to pay sanctions in the amount of \$500.00 within 30 days of the Order.

Zacharias and Ortega filed separate Motions to Modify the Interlocutory Order to Strike Financial Condition as a Condition of Relief (“Motions”) requesting that the sanctions be stricken from the May 14 Orders. Defendants argue that they are indigent and cannot pay the sanctions. Defendants argue that the sanctions will prevent them from defending the action in violation of their due process rights.